

2.

CASE #	CASE NAME	HEARING NAME
CVRI2203266	HARB vs COUNTY OF RIVERSIDE	MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION ON 4TH AMENDED CROSS-COMPLAINT

Tentative Ruling:

Parties have filed a stipulation and proposed order to be signed in Court.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2203266	HARB vs COUNTY OF RIVERSIDE	MOTION TO SET ASIDE THE COURT'S JUNE 10, 2026 JUDGMENT UNDER CCP 473

Tentative Ruling:

Parties have filed a stipulation and proposed order to be signed in Court.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2405117	BATISTA vs KOHUT, M.D.	MOTION FOR SUMMARY JUDGMENT ON COMPLAINT

Tentative Ruling:

Motion is unopposed. The motion is granted for the following reasons:

Factual / Procedural Context:

This is a medical malpractice action filed against a hospital and physicians who treated Plaintiff Ericka Baptista while pregnant and in labor shortly before giving birth to her newborn Emma Obeso. A few days after birth, Emma Obeso passed away.

Plaintiffs are the surviving parents of the decedent, Emma Obeso. Plaintiffs' individual claims are being asserted in the form of a wrongful death action, seeking damages they personally suffered on the account of the decedent's death. In addition, the decedent's mother, Ericka Baptista, as the successor in interest to the decedent, is asserting, in the form of a survival action, the claims the decedent would have had had she lived, for injuries allegedly suffered prior to death. On September 11, 2024, Plaintiffs filed their Complaint, alleging the following 4 causes of action: (1) Wrongful Death